

**E Roz** <evanroz@gmail.com>

RE: 585 Corydon - Withdrawal1 message

Maclean, David <David.Maclean@gov.mb.ca>Thu, Feb 29, 2024 at
3:11 PM

To: Evan Rosner <evanroz@gmail.com>

Good afternoon Evan

Thank you for the email.

Although it is rare these days that landlords withdraw a service and apply for an above guideline rent increase it does happen. We actually have the ability and space on our application forms (for the above guideline rent increase) to do both at the same time with one officer doing it under one application. Unfortunately in this instance it didn't work out that way (as the rent increase and withdrawal dates are different) but I was still assigned both files anyway. In no way did having both files impact the outcome for the rent increase or upcoming withdrawal.

For the claim process, there is no timeframe as to when you must file a claim. So no statue of limitations.

Thanks Evan.

David Maclean

Residential Tenancies Officer

Residential Tenancies Branch

200-155 Carlton St

Winnipeg, MB R3C 3H8

Phone: 204-945-2484

Fax: 204-945-6273

From: Evan Rosner <evanroz@gmail.com>
Sent: Thursday, February 29, 2024 10:58 AM
To: Maclean, David <David.Maclean@gov.mb.ca>
Subject: Re: 585 Corydon - Withdrawal

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Greetings,

Thank you for your reply.

I noticed that you're the officer that signed off on the decision in favour of the landlord for the rent above the guidelines request. I consider it questionable that this was done despite our communications over the

past month. Why was this not considered?

Also, is there a statute of limitations regarding filing a claim for the services withdrawn?

Thank you for your time and all the best,

Evan

On Mon, Feb 26, 2024 at 3:27 PM Maclean, David
<David.Maclean@gov.mb.ca> wrote:

Good afternoon Evan;

I cannot outright tell you if Daniel Chung has contacted me, however please give Mr Chung my email/phone so that he may contact me directly. The Branch generally thinks that 3 loads of laundry (3 each for washer and dryer) is fair. Sometimes it can be more depending on the size of the family, nature of employment, etc.

The travel costs for going to a laundromat up until the date of the withdrawal (May 1, 2024) should be included in the claim amount. Although I anticipate the withdrawal of service date on the Branch's order won't be May 1, 2024 you have every right to claim for extra laundry costs because the services were removed earlier than required. I say anticipate because the service has already been withdrawn; so I will factor this in when making a decision of how much

to reduce the rent *and* when the rent must be reduced by.

Thank you Evan

David Maclean

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200-155 Carlton St

Winnipeg, MB R3C 3H8

Phone: 204-945-2484

Fax: 204-945-6273

From: Evan Rosner <evanroz@gmail.com>

Sent: Monday, February 26, 2024 9:03 AM

To: Maclean, David <David.Maclean@gov.mb.ca>;
danielmchung677@hotmail.com

Subject: Re: 585 Corydon - Withdrawal

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Good morning,

Have you corresponded with Daniel Chung? He tells me that the door to the laundry services has been locked this weekend. He wants to file a claim for reimbursement for the lack of laundry services for 3 weeks since February 2, 2024. He also has not received correspondence from the landlord in regards to this matter.

We need to know what the expectations are for tenant use of laundry services per week. I believe it is a reasonable expectation to do 3 loads of laundry (including both washer and dryer cycles) each week. However, because this service withdrawal has implied travel costs and inconvenience this must also be included in the claim.

Thank you,

Evan Rosner

On Fri, Feb 23, 2024 at 3:04 PM Maclean, David
<David.Maclean@gov.mb.ca> wrote:

Good afternoon Evan

Thank you for this email and the one this morning.

I don't need to view the locker you received, I really (I apologise, I should have been more clearer as to why I asked) just wanted to see if it in anyway was a like for like space for the one you previously had. Which it isn't. Would you say the work started in the storage area around February 1, 2024 or before?

I have attached the claim form as well, there is no statue to say when you have to file, there is a \$50.00 filing fee (payable by cheque or if done in person by debit/credit card) however in your claim the plus costs part includes the \$50.00 filing fee if you are successful in your claim. The forms do need to be printed out on legal size, so I can mail this to you as well if it is easier.

Thank you

David Maclean

Residential Tenancies Officer

Residential Tenancies Branch

200-[155 Carlton St](#)

[Winnipeg, MB R3C 3H8](#)

Phone: 204-945-2484

Fax: 204-945-6273

From: Evan Rosner <evanroz@gmail.com>

Sent: Thursday, February 22, 2024 3:34 PM

To: Maclean, David <David.Maclean@gov.mb.ca>

Subject: Re: 585 Corydon - Withdrawal

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Thank you, David.

As I have stated before, this landlord has engaged in nefarious practices and now clearly criminal actions. In fact, the space my personal property was moved into is NOT a locker. It is a closet with a single lock. A locker should be defined as a small lockable closet or compartment, typically as one of a number placed together and the tenants belongings are ALWAYS protected by two locks - that of the locker itself and that of the storage facility. The landlord has attempted to rename the space being used, moved and potentially damaged my property without my permission, which I expressly forbade, and the result is less security than I had before.

The measurements of the closet, which does not meet the requirements of denotation of meaning for 'locker' I will get later.

Please give me information on what forms I require for the filing of the claim.

Thank you,

Evan Rosner

On Thu, Feb 22, 2024 at 1:47 PM Maclean, David
<David.Maclean@gov.mb.ca> wrote:

Hi Evan

Thank you for your patience. I have received an email back from the landlord to advise that your belongings have been moved and the laundry has been disconnected. Although the Branch is firm in its stance that the services must remain accessible (in its current state) until the permanent withdrawal date, the Branch cannot do more than tell the landlord this.

The consequence of this though is that the withdrawal date will change. I will be formulating an amount for the rent reduction for the withdrawal of the storage and laundry.

I have your current measurements of the unit as 90cm by 60 cm by 60cm. Do you know what the provided locker space is?

Also for laundry; can you let me know where you now have to go for laundry services and how often you would have to go. I also will be doing the same but welcome your input as well.

Filing a claim. You have every right, the landlord is also aware, that you can file a claim with the Branch for financial loss. This could be, but not restricted to.... Any loss of personal items in the storage locker, laundry services, locker space. A hearing would take place and a hearing officer would make a ruling based on the evidence provided.

Please let me know if you have any questions, thank you Evan

David Maclean

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